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|                             |                  |                                        |                                                                                                  | <p><i>Fees” of \$225. The fees appear to be excessive based on the limited filings in the case. Clarification is needed.</i></p> <ol style="list-style-type: none"> <li>4. <i>Item 17 of the Petition should be reviewed for accuracy. Item 17a(2) indicates that the Petitioner and the attorney do not have an agreement for services, but an agreement is included as Attachment 17a. As such, it appears the incorrect box has been checked.</i></li> <li>5. <i>Item 17c of the Petition should be reviewed for accuracy. Item 17c indicates that the attorney has not received attorney’s fees in addition to that requested in this Petition. However, Attachment 11(b)3 indicates that counsel has received \$8,333.33 as fees for the Petitioner’s settlement. Clarification is needed.</i></li> <li>6. <i>Item 23 of the Petition is incomplete. It is unclear if all the intended attachments are included.</i></li> <li>7. <i>At the next hearing, the minor and Petitioner should appear via Zoom or in person for examination under California Rules of Court, rule 7.952.</i></li> </ol> |
| <b><u>APPROVED LIST</u></b> |                  |                                        |                                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>1</b>                    | <b>15PR-0403</b> | <b>In Re: The Swanson Family Trust</b> | <b>Petition Filed 04/28/2026 - Amended Petition for Order Approving Final Account of Trustee</b> | <p><b>APPROVED LIST:</b> <i>The matter is approved, subject to the following modifications:</i></p> <ol style="list-style-type: none"> <li>1. <i>The Amended Petition filed on April 28, 2026 does not indicate that it is an amendment to a prior pleading, but rather it indicates it is a fully amended Petition. Nevertheless, none of the Exhibits Referenced and Incorporated are located as part of this Amended Petition.</i></li> </ol>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|  |  |  |  | <p><i>Rather, they all appear to be attached to the original Petition, which was filed on March 24, 2025. It is recommended the Court deem the April 28<sup>th</sup> Amended Petition an Amendment to the original pleading, dated March 24, 2025, so as to incorporate the exhibits which are not included in the April 28<sup>th</sup> filing.</i></p> <p><i>2. Per the terms of the First Amendment, the distribution under section A.7, indicates that the Trust terminates on the death of the beneficiary, Kenneth R. Swanson. At that time, the estate was to be distributed equally between the settlor's children. It is understood two of the Settlor's children died after the beneficiary died, but before distribution occurred. In fact, those two parties appear to have died after the first order was issued on the original Petition. Based on the terms of the Trust, it seems distribution of the Trust assets would pass equally to those five children, as they survived the termination triggering event in the Trust terms: the death of Kenneth R. Swanson. As such, it is recommended the Court distribute assets to 20% Julie Ann Harris, 20% Dennis Swanson, 20% Kenneth Jerry Swanson Bokano (Son of the beneficiary), 20% to the estate of Duane Swanson, 20% to the estate of Randy Swanson.</i></p> <p><i>3. It is understood for notice purposes, Julie Harris, Kenneth Jerry Swanson Bokano, and Dennis Swanson are the successors in interest for Duane's estate and Randy's estate.</i></p> <p><i>4. A revised order is needed.</i></p> |
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| 4-5 | 20PR-0216 | Conservatorship of: Jeffrey Lewelling | <p><b>(4) Petition Filed 03/18/2026 - First Account Current and Report of Trustee and Petition for Allowance of Attorney Fees</b></p> <p><b>(5) Hearing - Filed 05/12/2026 - Special Appearance and Objection to Request for Disgorgement of Attorney's Fees</b></p> | <p>APPROVED LIST: <i>The matter is recommended for approval with the following changes:</i></p> <ol style="list-style-type: none"> <li><i>1. The paralegal fee charged in Exhibit D exceeds community standards. A reduction of \$551.00 in the attorney fee request is recommended, representing the paralegal rate reduction. The July 31, 2026 Declaration is silent on this issue and it is presumed the recommendation is acceptable. A total fee of \$4,334.50 plus costs of 440.95 is recommended (reduced from \$4,885.50).</i></li> <li><i>2. Bond. The decreased bond of \$162,849.07 is recommended as prayed. An OSC re: reduction in bond is not recommended due to calendar constraints, but the new bond must be filed by the next account due date listed below.</i></li> <li><i>3. There is a request to disgorge funds from a third party that the Petitioner paid with conservatorship funds. Authority for this Court to take such actions was not provided. An Objection to the disgorgement was filed by the third party. It is not recommended the Court order the disgorgement as part of this account. A review of the invoices presented with the Petition has been completed. Based on the amount paid and what appears to be a lack of accurate advice on the issue from the prior attorney, it is recommended the Court allow payment, but warn the now, Court created Special Need Trust Trustee to not pay fees prior to Court order in the future. This should resolve the Objection.</i></li> </ol> |
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|                            |           |                                                       |                                                                                              | 4. <i>The Second Account and Report, for the period of Sept. 20, 2024 to September 19, 2026 is due by December 19, 2026.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 7                          | 22PR-0139 | Conservatorship of: Barbara Klein                     | Petition First Account Filed 02/19/2025; Cont'd 7/11/25, 1/23/26 and 5/15/26                 | APPROVED LIST: <i>The matter is recommended for approval, as amended by the Supplement filed on July 9, 2026 with the Amended Account, subject to Petitioner providing information on the status of the joint account at Mechanic's Bank still held in joint tenancy with Jeannie Thorton and efforts made to obtain any funds that belong to the conservatee. The Supplement indicates no assets have been transferred to the estate. A plan is needed and will be addressed as to progress at the next hearing, which is February 5, 2027 at 9:00 a.m. in P2 to address the issues in the Amended Second Account remaining.</i> |
| <b><u>HEARING LIST</u></b> |           |                                                       |                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 2                          | 18PR-0028 | Guardianship of: Cherysh Kimzey                       | Status Conference                                                                            | HEARING LIST: <i>Zoom or personal appearance is needed.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 3                          | 19PR-0059 | Estate of: Debra Jones                                | OSC re: Dismissal; Cont'd 6/26/26                                                            | HEARING LIST: <i>*UPDATE* Zoom or personal appearance is required. The following issue is noted: The Declaration filed June 2, 2026 indicates that counsel for the Administrator anticipated the terms of the settlement to be completed by September 1, 2026. An updated Declaration filed on Sept. 16, 2026 indicates there is a delay and the matter should remain open, but the period is not clear. Appearance is required to discuss the period.</i>                                                                                                                                                                        |
| 8                          | 23PR-0247 | In Re: John A. Alexander Trust Dated October 25, 1993 | Petition Filed 04/28/2026 - Orders Suspending Power of Trustee, Appointing Temp. Trustee and | HEARING LIST: <i>Zoom or personal appearance is needed. An Objection has been filed.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |